

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.:

-----X
SHAQUILLE HATCHER, ASAD GILES and JASON
HARGROVE,

SUMMONS

Plaintiff designates
QUEENS County as the
place of trial.

Plaintiffs,

-against-

The basis of venue
is:

THE CITY OF NEW YORK, DET. ROBERT ARNOLD,
DET. LENNARD SHULMAN AND DET. MICHAEL
HIDDESEN,

The County where the
Tort arose

Defendants.

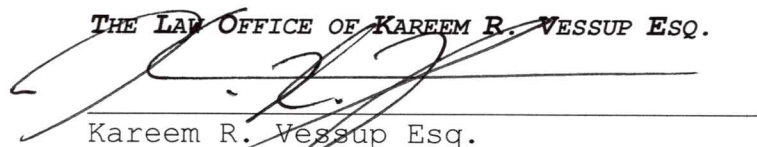
The Tort arose in
QUEENS County, State
of New York

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
AUGUST 7, 2017

THE LAW OFFICE OF KAREEM R. VESSUP ESQ.



Kareem R. Vessup Esq.
Attorneys for Plaintiff
SHAQUILLE HATCHER, ASAD GILES and
JASON HARGROVE
89-31 161st Street Suite 705
Jamaica, New York 11432
(718)219-8744
Our File No. 14-1376

TO: The City of New York
C/O NYC Law Department
100 Church Street
New York, NY 10007

Det. Robert Arnold
One Police Plaza
New York, NY 10038

Det. Lennard Shulman
One Police Plaza
New York, NY 10038

Det. Michael Hiddessen
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
SHAQUILLE HATCHER, ASAD GILES and JASON
HARGROVE,

Index No.:

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, DET. ROBERT ARNOLD,
DET. LENNARD SHULMAN AND DET. MICHAEL
HIDDESEN,

Defendants.
-----X

Plaintiffs **SHAQUILLE HATCHER, ASAD GILES and JASON HARGROVE**, by their attorneys THE LAW OFFICE OF KAREEM R. VESSUP ESQ., complaining of the Defendants, respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **SHAQUILLE HATCHER** was a resident of the County of Queens, City and State of New York who has now relocated to North Carolina.

2. At all times herein mentioned, Plaintiff **ASAD GILES** was a resident of the County of Queens, City and State of New York

3. At all times herein mentioned, Plaintiff **JASON HARGROVE** was a resident of the County of Queens, City and State of New York

4. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

5. Upon information and belief, at all times mentioned, Defendants **DET. ROBERT ARNOLD, DET. LENNARD SHULMAN AND DET.**

MICHAEL HIDDESSEN were and are police officers and/or Detectives of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and/or employees of the Defendant, **THE CITY OF NEW YORK**

6. Upon information and belief Defendants **DET. LENNARD SHULMAN** and **DET. MICHAEL HIDDESSEN** encountered Plaintiffs during the performance of their duties as Officers and/or Detectives of Defendant **THE CITY OF NEW YORK**.

BACKGROUND FACTS

7. Upon information and belief, on April 14, 2012 an individual named Donnette Lawrence was shot at or near 154-68 Brookville Blvd. in Rosedale, NY while leaving a party at approximately 1:00am.

8. Upon information and belief, Police responded to the location of the shooting shortly thereafter.

9. Upon information and belief, Defendant **DET. ROBERT ARNOLD** was the first detective to be assigned to the investigation of the shooting.

10. Upon information and belief, Defendant **DET. MICHAEL HIDDESSEN** became involved in the investigation at approximately 2:40am at Long Island Jewish Medical Center.

11. Upon information and belief, Defendant **DET. MICHAEL HIDDESSEN** interviewed Jamyce Mobley in connection with this investigation at approximately 3:00am on April 14, 2012.

12. Upon information and belief, at approximately 3:30pm Defendant **DET. MICHAEL HIDDESEN** utilized NYPD procedures and systems to have an I-Card issued for Plaintiff **ASAD GILES** claiming to have probable cause for Plaintiff's arrest based on false, erroneous and/or misrepresented statements of **ASAD GILES'S** involvement in the shooting.

13. Upon information and belief, **DET. MICHAEL HIDDESEN** arrested Plaintiff **ASAD GILES** at his home without a warrant on April 15, 2012 at approximately 9:15am.

14. Upon information and belief, **DET. MICHAEL HIDESEN** conducted his first interview of Donette Lawrence on April 15, 2012 at approximately 1:30pm at Long Island Jewish Medical Center.

15. Upon information and belief, on April 15, 2012 at 8:00pm an I-Card was submitted for Plaintiff **SHAQUILLE HATCHER**.

16. Upon information and belief, on April 15, 2012 at approximately 9:00pm, **DET. MICHAEL HIDDESEN** provided false, erroneous and/or misrepresented information to the Queens County District Attorney's Office resulting in the initiation of a criminal prosecution against Plaintiff **ASAD GILES** charging him with Attempted Murder, Gang Assault, Assault, Criminal use of a firearm and 2 counts of Criminal Possession of a firearm.

17. Upon information and belief, on April 15, 2012 at approximately 9:30pm I-cards were issued for Plaintiffs **JASON HARGROVE** and **SHAQUILLE HATCHER**. The I-Card application identified JASON HARGROVE as "suspect only - no probable cause to arrest" and

SHAQUILLE HATCHER as "perpetrator - probable cause to arrest."

18. Upon information and belief, on April 15, 2012 at approximately 10:30pm Defendant **DET. MICHAEL HIDDESEN** changed the status of the I-Card for Plaintiff **SHAQUILLE HATCHER** to "suspect only - no probable cause to arrest".

19. Upon information and belief, on or about April 16, 2012 Defendant **DET. LENNARD SHULMAN** became involved in this investigation.

20. Upon information and belief, on or about April 17, 2012 at approximately 9:00pm Defendant **DET. LENNARD SHULMAN** conducted the second interview of Donnette Lawrence at Long Island Jewish Medical Center.

21. Upon information and belief, on or about April 18, 2012 at approximately 7:00pm Plaintiff **JASON HARGROVE** was arrested without a warrant at his home in Queens, NY.

22. Upon information and belief, on or about April 18, 2012 at approximately 9:15pm Plaintiff **SHAQUILLE HATCHER** was arrested without a warrant at his home in Queens, NY.

23. An additional individual named Luis Rivera was also arrested on April 18, 2012 in connection with this incident.

24. Upon information and belief, **DET. MICHAEL HIDDESEN** and **DET. LENNARD SHULMAN** provided false, erroneous and/or misrepresented information to the Queens County District Attorney's Office resulting in the initiation of criminal prosecutions against Plaintiffs **SHAQUILLE HATCHER** and **JASON**

HARGROVE charging each of them with Attempted Murder, Gang Assault, Assault, Criminal use of a firearm and 2 counts of Criminal Possession of a firearm.

25. Additionally, Defendant **DET. MICHAEL HIDDESSEN** reviewed and signed Criminal Complaints for the three Plaintiffs named herein, wherein he swore to false and/or misrepresented information regarding the subject incident.

26. Upon information and belief, on April 20, 2012 further investigation was performed in this case involving one Joseph Oliver by **DET. LENNARD SHULMAN**.

27. Upon information and belief, neither Defendant **DET. MICHAEL HIDDESSEN** or **DET. LENNARD SHULMAN** updated the Queens County District Attorney's Office with the information obtained from the further investigation.

28. Upon information and belief, Defendant **DET. MICHAEL HIDDESSEN** closed the NYPD investigation into the subject incident on or about April 24, 2012.

29. Upon information and belief, prior to closing the investigation Defendants **DET. MICHAEL HIDDESSEN** and **DET. LENNARD SHULMAN** prepared reports and in doing so included false, inaccurate, fabricated or misrepresented information that was material to the investigation and the specific charges brought against each of these Plaintiffs.

30. Upon information and belief, Defendants **DET. MICHAEL HIDDESSEN** and **DET. LENNARD SHULMAN** remained involved in the

criminal prosecutions brought against the Plaintiffs in this lawsuit by conferring with the Queens District Attorney's Office and providing sworn testimony at various stages of the prosecution. Upon information and belief said sworn testimony included false, incomplete, inaccurate and/or misleading information.

31. The criminal prosecutions initiated against **ASAD GILES** on or about April 15, 2012 and **SHAQUILLE HATCHER** and **JASON HARGROVE** on or about April 18, 2012 continued until August 8, 2014 at which time all charges against these Plaintiffs were dismissed based on a verdict acquitting the Plaintiffs of all the criminal charges filed against them.

32. Upon information and belief, during the pendency of the criminal prosecution each of the Plaintiffs herein were incarcerated awaiting trial; **SHAQUILLE HATCHER** approximately 2 ½ years, **ASAD GILES** approximately 2 ½ years and **JASON HARGROVE** approximately 2 months.

**AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON
BEHALF OF PLAINTIFF ASAD GILES**

33. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "32" with full force and effect as though set forth at length herein.

34. At all times mentioned herein, Defendants **DET. ROBERT ARNOLD**, **DET. LENNARD SHULMAN** AND **DET. MICHAEL HIDDESEN** were acting under color of law, to wit: the statutes, ordinances,

regulations, policies, customs and usage of the State of New York and/or **THE CITY OF NEW YORK**.

35. Plaintiffs **SHAQUILLE HATCHER, ASAD GILES and JASON HARGROVE** were, and at all times relevant herein, are citizens or legal residents of the United States and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

36. The Defendant **THE CITY OF NEW YORK** is a government subdivision duly incorporated and existing under the laws of the State of New York.

37. That on or about April 15, 2012 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about August 8, 2014, Defendants **DET. MICHAEL HIDDESSEN** and **DET. LENNARD SHULMAN** deliberately and maliciously prosecuted Plaintiff **ASAD GILES**, an innocent man without any probable cause whatsoever, by initiating, and allowing to continue, a criminal prosecution in the Criminal Court of the City of New York, Queens County for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

38. The Defendants **DET. MICHAEL HIDDESSEN** and **DET. LENNARD SHULMAN**, failed to take reasonable steps to stop the prosecution of Plaintiff **ASAD GILES** and provided false, fabricated and/or incomplete information to the District Attorney's Office, Grand Jury and Petit Jury to initiate a criminal prosecution against the Plaintiff, to secure an indictment and ultimately a conviction.

39. The commencement of this criminal proceedings against **ASAD GILES** was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants for a purpose outside of, and repugnant to, the legitimate ends of justice.

40. As a result of the malicious prosecution, Plaintiff **ASAD GILES** was deprived of his liberty for approximately two and one-half (2 ½) years on Rikers Island and suffered humiliation, mental anguish, indignity and the frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution.

41. All of the foregoing acts by Defendants deprived Plaintiff **ASAD GILES** of federally protected rights, including, but not limited to, the right to be free from Malicious Prosecution.

42. As a result of the foregoing, Plaintiff **ASAD GILES**, is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

**AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON
BEHALF OF PLAINTIFF SHAQUILLE HATCHER**

43. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "42" with full

force and effect as though set forth at length herein.

44. At all times mentioned herein, Defendants **DET. ROBERT ARNOLD, DET. LENNARD SHULMAN AND DET. MICHAEL HIDDESSEN** were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or **THE CITY OF NEW YORK**.

45. Plaintiffs **SHAQUILLE HATCHER, ASAD GILES and JASON HARGROVE** were, and at all times relevant herein, are citizens or legal residents of the United States and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

46. The Defendant **THE CITY OF NEW YORK** is a government subdivision duly incorporated and existing under the laws of the State of New York.

47. That on or about April 18, 2012 Plaintiff **SHAQUILLE HATCHER** was arrested and from that time until the end of the criminal prosecution on or about August 8, 2014, Defendants **DET. MICHAEL HIDDESSEN** and **DET. LENNARD SHULMAN** deliberately and maliciously prosecuted Plaintiff **SHAQUILLE HATCHER**, an innocent man without any probable cause whatsoever, by initiating, and allowing to continue, a criminal prosecution in the Criminal Court of the City of New York, Queens County for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

48. The Defendants **DET. MICHAEL HIDDESEN** and **DET. LENNARD SHULMAN**, failed to take reasonable steps to stop the prosecution of Plaintiff **SHAQUILLE HATCHER** and instead provided false, fabricated and/or incomplete information to the District Attorney's Office, Grand Jury and Petit Jury to initiate a criminal prosecution against the Plaintiff, to secure an indictment and ultimately a conviction.

49. The commencement of this criminal proceedings against **SHAQUILLE HATCHER** was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants for a purpose outside of, and repugnant to, the legitimate ends of justice.

50. As a result of the malicious prosecution, Plaintiff **SHAQUILLE HATCHER** was deprived of his liberty for approximately two and one-half (2 ½) years on Rikers Island and suffered humiliation, mental anguish, indignity and the frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution.

51. All of the foregoing acts by Defendants deprived Plaintiff **SHAQUILLE HATCHER** of federally protected rights, including, but not limited to, the right to be free from Malicious Prosecution.

52. As a result of the foregoing, Plaintiff **SHAQUILLE HATCHER**, is entitled to compensatory damages in an amount to be

fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

**AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON
BEHALF OF PLAINTIFF JASON HARGROVE**

53. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "52" with full force and effect as though set forth at length herein.

54. At all times mentioned herein, Defendants **DET. ROBERT ARNOLD, DET. LENNARD SHULMAN AND DET. MICHAEL HIDDESEN** were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or **THE CITY OF NEW YORK**.

55. Plaintiffs **SHAQUILLE HATCHER, ASAD GILES and JASON HARGROVE** were, and at all times relevant herein, are citizens or legal residents of the United States and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

56. The Defendant **THE CITY OF NEW YORK** is a government subdivision duly incorporated and existing under the laws of the State of New York.

57. That on or about April 18, 2012 Plaintiff **JASON HARGROVE** was arrested and from that time until the end of the criminal

prosecution on or about August 8, 2014, Defendants **DET. MICHAEL HIDDESSEN** and **DET. LENNARD SHULMAN** deliberately and maliciously prosecuted Plaintiff **JASON HARGROVE**, an innocent man without any probable cause whatsoever, by initiating, and allowing to continue, a criminal prosecution in the Criminal Court of the City of New York, Queens County for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

58. The Defendants **DET. MICHAEL HIDDESSEN** and **DET. LENNARD SHULMAN**, failed to take reasonable steps to stop the prosecution of Plaintiff **SHAQUILLE HATCHER** and instead provided false, fabricated and/or incomplete information to the District Attorney's Office, Grand Jury and Petit Jury to initiate a criminal prosecution against the Plaintiff, to secure an indictment and ultimately a conviction.

59. The commencement of this criminal proceedings against **JASON HARGROVE** was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants for a purpose outside of, and repugnant to, the legitimate ends of justice.

60. As a result of the malicious prosecution, Plaintiff **JASON HARGROVE** was deprived of his liberty for approximately two (2) months on Rikers Island and suffered humiliation, mental anguish, indignity and the frustration of an unjust criminal

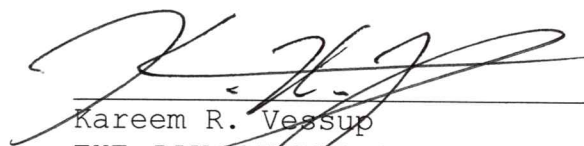
prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution.

61. All of the foregoing acts by Defendants deprived Plaintiff **JASON HARGROVE** of federally protected rights, including, but not limited to, the right to be free from Malicious Prosecution.

62. As a result of the foregoing, Plaintiff **JASON HARGROVE**, is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, and attorney's fees and costs for bringing this case.

Dated: JAMAICA, NEW YORK
AUGUST 7, 2017



Kareem R. Vessup

THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.

Attorney for Plaintiffs

SHAQUILLE HATCHER, ASAD GILES and
JASON HARGROVE

89-31 161st Street, Suite 705

Jamaica, New York 11432

(718) 219-8744 - P

(718) 228-7733 - F

Our File No. 14-1376